

STATE OF NEW YORK

8211--B

2025-2026 Regular Sessions

IN SENATE

May 21, 2025

Introduced by Sen. ADDABBO -- read twice and ordered printed, and when printed to be committed to the Committee on Agriculture -- recommitted to the Committee on Agriculture in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the agriculture and markets law, in relation to standards of care for animals held in, or being transported by, animal shelters; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 420 of the agriculture and markets
2 law, as added by chapter 683 of the laws of 2022, is amended to read as
3 follows:
4 6. "Animal shelter" shall mean a public or not-for-profit entity
5 owning, operating, or otherwise maintaining a building, structure, or
6 facility where temporary or permanent housing and care is provided to
7 stray, abandoned, abused, seized, impounded, owner-surrendered or other-
8 wise unwanted animals regardless of whether or not such facility also
9 serves as a personal residence. This includes but is not limited to:
10 facilities owned, operated, or maintained by a duly incorporated society
11 for the prevention of cruelty to animals, duly incorporated humane soci-
12 ety dog or cat protective association, or pound; any person in the
13 employ of, or organization operated by or under contract to a munici-
14 pality to provide care for seized or impounded animals; or any other
15 not-for-profit organization involved in the protection, care, or rehoming
16 of animals. Unless otherwise provided in this article, the term
17 "animal shelter" shall not include the personal residence of any foster
18 care provider as defined in this section; a facility commonly known as a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 boarding kennel, where the ownership of the animal is not transferred;
2 any entity licensed as a pet dealer pursuant to article twenty-six-A of
3 this chapter; any duly incorporated animal hospital owned, operated or
4 supervised by a duly licensed veterinarian; ~~[or]~~ any facility where the
5 owner or operator is licensed by the New York state department of envi-
6 ronmental conservation as a nuisance wildlife control agent or wildlife
7 rehabilitator; or any municipality as defined in section one hundred
8 eight of this chapter, that establishes and maintains a pound or shelter
9 pursuant to subdivision one of section one hundred fourteen of this
10 chapter that impounds less than five dogs annually and harbors not more
11 than any two dogs at the same time.

12 § 2. Section 422 of the agriculture and markets law is amended by
13 adding a new subdivision 5 to read as follows:

14 5. The provisions of this section shall not be applicable to any
15 veterinarian or veterinary technician authorized to practice in this
16 state pursuant to article one hundred thirty-five of the education law.

17 § 3. Subdivision 17 of section 425 of the agriculture and markets law
18 is REPEALED.

19 § 4. Subdivision 3 of section 427 of the agriculture and markets law,
20 as added by chapter 683 of the laws of 2022, is amended to read as
21 follows:

22 3. The total number of animals housed in an animal shelter facility
23 ~~[or foster home]~~ shall not exceed the number of housing units available
24 at the facility as required by section four hundred twenty-five of this
25 article; provided, however, that exceptions to the provisions of this
26 subdivision shall be permissible for periods not to exceed forty-five
27 contiguous days in the event of an animal seizure pursuant to article
28 twenty-six of this chapter or a natural disaster where an official
29 declaration of the disaster or emergency has been made.

30 § 5. Subdivision 8 of section 429 of the agriculture and markets law,
31 as added by chapter 683 of the laws of 2022, is amended to read as
32 follows:

33 8. Each animal shelter shall vaccinate each animal in its custody or
34 possession with core vaccines as recommended by national standards and
35 guidelines specific to animal shelters as established, endorsed or
36 approved by the ~~[American Association of Feline Practitioners (AAFP),]~~
37 American Animal Hospital Association (AAHA)~~[7]~~ or the Association of
38 Shelter Veterinarians (ASV).

39 § 6. Paragraphs (e) and (f) of subdivision 3 of section 431 of the
40 agriculture and markets law, as added by chapter 683 of the laws of
41 2022, are amended to read as follows:

42 (e) Each dog shall be provided with the opportunity to exercise and
43 eliminate at least once every twelve hours while confined to the trans-
44 port vehicle, including load time. Each dog being transported that is
45 less than twelve weeks of age shall be removed from their enclosure and
46 allowed to exercise and eliminate at least every ~~[two]~~ six hours.

47 (f) No dog or cat shall be left unattended in any transport vehicle
48 for more than one hour, ~~[regardless of whether heating, ventilation]~~
49 ~~[air conditioning (HVAC)]~~ only if remote temperature monitoring
50 is provided in [such vehicle] the animal compartment of such vehicle.

51 § 7. Paragraph (a) of subdivision 1 of section 109 of the agriculture
52 and markets law, as amended by chapter 420 of the laws of 2025, is
53 amended to read as follows:

54 (a) The owner of any dog reaching the age of four months shall imme-
55 diately make application for a dog license. No license shall be required
56 for any dog which is under the age of four months and which is not at

1 large, or that is residing in [~~a pound or shelter maintained by or under~~
2 ~~contract or agreement with the state or any county, city, town or~~
3 ~~village, duly incorporated society for the prevention of cruelty to~~
4 ~~animals, duly incorporated humane society or duly incorporated dog~~
5 ~~protective association]~~ any animal shelter, as defined by subdivision
6 six of section four hundred twenty of this chapter, any foster care
7 provider, as defined by subdivision twenty-one of section four hundred
8 twenty of this chapter, or any municipality that establishes and main-
9 tains a pound or shelter pursuant to subdivision one of section one
10 hundred fourteen of this article that impounds less than five dogs annu-
11 ally and harbors not more than any two dogs at the same time. Except as
12 otherwise provided in this subdivision, a license shall be issued or
13 renewed for a period of at least one year, provided, that no license
14 shall be issued for a period expiring after the last day of the eleventh
15 month following the expiration date of the current rabies certificate
16 for the dog being licensed. All licenses shall expire on the last day of
17 the last month of the period for which they are issued. In the event an
18 applicant for a license presents, in lieu of a rabies certificate, a
19 statement certified by a licensed veterinarian, as provided in subdivi-
20 sion two of this section, a license shall be issued or renewed for a
21 period of one year from the date of said statement. Any municipality may
22 establish a common renewal date for all such licenses. A license issued
23 by a municipality that has established a common renewal date shall
24 expire no later than the common renewal date prior to the expiration
25 date of the rabies certificate for the dog being licensed.

26 § 8. This act shall take effect immediately.